



Terms



Get started

For Consumers



EU - Terms of Service

ROW - Terms of Service

For Commercial Customers



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

For Partners



Connectors terms

For Everyone



For the purpose of this Data Processing Addendum:

(a) “**Agreement**” means the service agreement entered into by and between the Parties, governing the provision of the Mistral AI Products by Mistral AI to the Customer. The DPA is hereby incorporated to the Agreement by reference.

(b) “**Applicable Data Protection Law**” means any applicable privacy, data security, or data protection law or regulation, including, to the extent applicable, Regulation (EU) 2016/679 of the European Parliament and of the Council of 27 April 2016 applicable since 25 May 2018 (the



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

Implementing Decision 2021/914 of June 4, 2021 on standard contractual clauses for the transfer of personal data to third countries pursuant to the GDPR, the text of which is available at: https://eur-lex.europa.eu/eli/dec_impl/2021/914/oj?uri=CELEX:32021D0914.

(j) “**Subprocessor**” means any Processor appointed by Mistral AI to carry-out all or part of the Processing on behalf of the Customer.

(k) “**Trust Center**” means the Mistral AI Trust Center available at <https://trust.mistral.ai/> (as such URL may be updated by Mistral AI from time to time).



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



purposes or:

- Training its artificial intelligence models in accordance with its [Privacy Policy](#), unless (a) Customer opted-out of training or (b) uses a Mistral AI Product that is opted-out by default and has not opted-in. Customer acknowledges that if Customer provides feedback to Mistral AI by using the in-app "thumbs up" or "thumbs down" features (the "**Feedback**"), Mistral will use such Feedback as well as the associated Input and Output, as Controller, to train its artificial intelligence models, conduct research or improve the Mistral AI Products.



- Automated moderation, including abuse monitoring on our APIs (except, in this last case, when zero data retention has been activated), to enforce the Agreement

Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



- Promptly inform Customer if, in its opinion, Customer's instructions regarding the Processing infringe the Applicable Data Protection Law. In such an event, Mistral AI is entitled to refuse to perform the Processing that it believes to be in violation of the Applicable Data Protection Law,
- Ensure that any person Mistral AI authorizes to Process Personal Data (including Mistral AI team members and the Subprocessors), is subject to a duty of confidentiality,



- Comply with all obligations applicable to it in its role as a Processor under Applicable Data Protection Law and provide the same level of privacy protection as is required by Applicable Data Protection Law

Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

- Provide notice and obtain all consents and rights required by the Applicable Data Protection Law for Mistral AI to Process Personal Data as part of the Processing, under this DPA.

4. Data Subjects

4.1 Customer responsibility



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

5.1 Security measures

Taking into account the state of the art, the costs of implementation and the nature, scope, context and purposes of Processing, as well as the risk of varying likelihood and severity for the rights and freedoms of natural persons, Mistral AI shall implement and maintain technical and organizational measures designed to protect Personal Data from any Personal Data Breach that meet or exceed requirements under Applicable Data Protection Law. The security measures implemented by Mistral AI under this DPA are listed in Exhibit 2 of this DPA. Customer acknowledges that such security measures are subject to technical



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

- A description of the measures Customer could take to mitigate the possible adverse effects of the Personal Data Breach and to prevent from another potential Personal Data Breach,
- The likely consequences of the Personal Data Breach, and
- The measures proposed or taken by Mistral AI following the Personal Data Breach, including to prevent from any new occurrence.



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



Mistral AI's website, including in the Trust Center,

- If Customer subscribes to receive updates available on Mistral AI's Subprocessor page on the Trust Center, Customer will be automatically notified by email of any addition or replacement of a Subprocessor to this list,
- Mistral AI will enter into a written agreement with each Subprocessor imposing data protection terms that require the Subprocessor to protect the Personal Data to the same standards provided by this DPA, and



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



Customer authorized Mistral AI to transfer Personal Data to any country deemed to have an adequate level of data protection by the European Commission. Customer also authorizes Mistral AI to perform International Data Transfers to (a) on the basis of adequate safeguards in accordance with Applicable Data Protection Laws, or (b) pursuant to the SCCs.

8.2 Customer located in a Restricted Country

This Section only applies if Customer is located in a Restricted Country. By accepting this DPA, Mistral AI and Customer conclude Module 4 (Processor-to-Controller) of the SCCs which applies to any International



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

9.2 Onsite audit

Only to the extent Customer cannot reasonably be satisfied with Mistral AI's compliance with this DPA through the exercise of the audit set out in Section 9.1 (Document Audit) of this DPA, Customer may conduct up to one (1) on-site audit per year to verify Mistral AI's compliance with this DPA, under the conditions defined below:

- This audit must be conducted with reasonable advance written notice of at least ninety (90) calendar days,



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

10. Return or destruction of Personal Data

10.1 Return or destruction

After the end of the provision of the Mistral AI Products, Mistral AI will delete or return to Customer all Personal Data Processed on Customer's behalf, in accordance with Mistral AI's deletion policies and procedures. Customer acknowledges that the Personal Data will no longer be accessible upon the expiry of a thirty (30) days period following the



Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

12. Specific Privacy Laws

12.1 Applicability

The terms in each subsection of this Section 12 (Specific Privacy Laws) apply only where the corresponding law applies to the Processing of Personal Data.

12.2 CCPA



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



the data importer are set out in Section 8.2 of the DPA.

2. Description of Processing

- **Categories of data subjects:** Customer’s authorized users, and any other natural person whose personal data is processed by Customer when using the Mistral AI Products in accordance with the Agreement.
- **Categories of personal data:** Customer’s authorized users account data and any personal data processed by Customer when using the



- **Special categories of personal data (if applicable):** None.

Terms

Get started

EU - Terms of Service

ROW - Terms of Service

Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum

Connectors terms

- **The period for which the personal data will be retained, or, if that is not possible, the criteria used to determine that period:** the duration of the Agreement.
- **For transfers to (sub-) processors, also specify subject matter, nature and duration of the processing:** The list of subprocessors is available [here](#).



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms



View all models



Terms

Get started



EU - Terms of Service

ROW - Terms of Service



Commercial Terms of Service

Additional Product Terms

Partner-served deployment terms

Additional Terms for Use of Mistral AI Products on Customer Infrastructure

Data Processing Addendum



Connectors terms

